

EXCELLENCE AT THE BAR: SENIOR ADVOCATES OF NIGERIA AS ROLE MODELS FOR THE BAR.

Introduction

It is a great privilege and exceeding honour for me to stand before you and address you on this assignment, which is to participate as a facilitator at the pre-swearing in induction programme for the new Senior Advocates of Nigeria.

May I seize this rare opportunity to thank the Body of Senior Advocates of Nigeria for this rare privilege, and on the same counterpane, to congratulate you on emerging successfully from the rather arduous exercise which can only attest to your capacity as great ambassadors of our beloved profession and its lofty and admirable ideals.

This episode is intended to serve as part of your orientation in order to highlight the onerous responsibilities bestowed on you by your emergence which, I venture to fathom, you are profoundly conscious of.

These obligations will invariably formally crystallise upon your swearing-in, at the ceremony marking the conferment on you of the distinguished rank of Senior Advocate of Nigeria (SAN). In case you have a doubt, it is the same rank conferred on Chief F. R. A. Williams SAN, Chief P. O. Balonwu SAN, Alhaji Ibrahim Abdullahi SAN, Chief Mrs. Folake Salanke SAN and a host of other larger than life luminaries who have ascended to the grand home above. The sacred toga which you shall adorn, will institutionalise your attained roles in your chosen profession with the requisite and further imposing demands on you to continue to exhibit, and indeed accelerate, the undiluted professionalism which brought you to the pedestal on which you now stand. It is thus a call to persist in the discharge of your responsibilities as barristers and solicitors of the Supreme Court of Nigeria, now that the light shines more prominently in you. I do not pretend to possess the knowledge and expertise which are not already at your disposal and neither will I direct you to matters of professionalism which will be alien to you.

It is the desire of the Body of Senior Advocates of Nigeria (BOSAN) on this score, to invite you to reason with us on the salient aspects of our profession, as escalated by the dictates of the new and distinguished rank which, in due time, shall be officially vested in you.

Undoubtably in the past months or perhaps years you ran the gauntlet and in emerging through that crucible are now privileged to wear that crown of glory, only fitted for an overcomer, as mandated by section 5(1) and (2) of the Legal Practitioners Act and the Guidelines for Conferment of the Rank of Senior Advocate of Nigeria and all Matters Pertaining to the Rank¹.

As you are generously acquainted, Section 5(1) and (2) of the Legal Practitioners Act² stipulates thus:

5(1) Subject to subsection (2) of this Section, the Legal Practitioners Privileges Committee established under subsection (3) of this section may by instrument confer on a legal practitioner the rank of a Senior Advocate of Nigeria.

(2) A person shall not be conferred with the Rank of Senior Advocate of Nigeria unless he has been qualified to practice as a legal practitioner in Nigeria for not less than ten years and has achieved distinction in the legal profession.

The rigors of your successful journey can be gleaned from the eligibility for the Rank as established by the Guidelines³, which at Section 22 stipulates thus:

22- (1) The Candidate must be a legal practitioner called to the Bar and practicing in Nigeria as an Advocate and must have been in active current legal practice and have been so for at least 10 years immediately preceding the date of application. In determining 'active current legal practice' in addition to such inquiry it considers necessary, the Legal Practitioners' Privileges Committee may consult the-

(a) Chief Judge of the State where the candidate has his main law office; and

(b) Local branch of the Nigerian Bar Association where the candidate has his main office.

¹ Guidelines for the conferment of the Rank of Senior Advocate of Nigeria and all matters pertaining to the Rank

²Legal Practitioners Act (LPA), Cap L11, Laws of the Federation of Nigeria, 2004.

³ *ibid*

(2) The candidate must be of good character and must have no pending disciplinary case or complaint relating to professional misconduct against him.

A candidate shall be considered ineligible if in the opinion of the Legal Practitioners' Privileges Committee the candidate is adjudged to be of the following disposition-

- (a) Bad behavior, whether in or out of court; poor temperament or propensity to insult or assault people or cause them harm or put them in state of fear of bodily harm;*
- (b) Indulgence in drug, alcoholic or other similar substances addiction;*
- (c) Evidence of moral depravity or other socially unacceptable behavior;*
- (d) Abuse of legal trust such as embezzlement or mismanagement of client's funds;*
- (e) Indulgence in blatant self-seeking praise or advertisement through sponsored (directly or indirectly) songs by musicians, records or tapes or other media such as print or electronic media; and*
- (f) touting for briefs or engaging in any form of canvassing for cases.*

There is thus a clear presumption that the official acts mandated by the foregoing section of the Guidelines were duly compiled with, thus invoking the compelling conclusion that you all are fully eligible to rise to the exalted rank with which you will soon be invested. Judicial officers as well as your peers of the Nigerian Bar Association fully attested to your excellent characters. Further, they confirmed that you have not exhibited adverse behaviours in and out of the law courts, poor temperaments or inclinations towards insulting or assaulting those you have been in contact with. There is equally a clear certification that you have not engaged in offences of moral turpitude, debaucheries, recklessness or depravity.

With the astute legal minds you all no doubt possess which, like the average lawyer with a playing mind be disposed to playing a devil's advocate, I am certain some may wonder whether the presumptions under Section 167 of the Evidence Act⁴ are not meant to be rebuttable. On my part, what I can own up with absolute certainty is that you can proceed through a sound and rigorous process under the scrutiny of the most astute legal practitioners and the

⁴ Evidence Act 2011

transparent supervision of the Chief Justice of Nigeria, whose zero tolerance for mediocrity is legendary. You therefore owe an obligation to ensure that the confidence reposed in you was not misplaced and to tenaciously ensure that the rebuttal must not come from you.

Indeed, in this murky terrain of litigation laced with cut-throat competition and jealousy, you will discover that clients have learnt to adopt insidious avenues of invoking incessant petitions against Senior Counsel, many of which are brazenly frivolous. Regrettably, some of our colleagues have, for less than glorious reasons, either tacitly or overtly encouraged such depravity. In all, it is always better to tenaciously embrace regularity so that in all instances, your conduct will speak eloquently on your behalf.

I must now go esoteric, and venture to describe your new status by borrowing from the words accredited to Yeshua Hamashiach, or Isa Ibn Mariam (Peace be unto Him), depending on your persuasion. In the gospel of Mathew, Chapter 5 verses 12 to 16, these words which perhaps are now applicable to you in your soon-to-be elevated status were said, namely:

- “13. *Ye are the salt of the earth: but if the salt have lost its savour, wherewith shall it be salted? It is thenceforth good for nothing, but to be cast out, and to be trodden under foot of men.*
- 14. *Ye are the light of the world. A city that is set on an hill cannot be hid.*
- 15. *Neither do men light a candle, and put it under a bushel, but on a candlestick; and it giveth light unto all that are in the house.*
- 15. *Let your light so shine before men, that they may see your good works.”*

Your earth is the terrain labeled law practice in Nigeria. It spans all superior Courts of record, but indeed like MTN, slogan, “everywhere you go.” Your salt is your self-worth, pure, serene, unique with the quality of preservation. Exhibit the qualities which have brought you this far and if you may not enhance therein, please do not diminish them. Remember, if salt *‘have lost its savor, wherewith shall it be salted?’. It will be branded good for nothing and cast out to be trodden under the foot of those willing to justify their prejudices.*

In a profession in which over 200, 000 have so far been admitted to the Bar, and only about 935 have been elevated to the Rank of Senior Advocate of Nigeria. the searchlight is therefore squarely and individually on you as elites in the profession. You are therefore expected to illuminate that light that is in you for a city that is set on a hill cannot be hidden. Let your light so shine, not just among your learned friends, but indeed in the society itself. The rank no doubt magnets attention, not just internally, but externally. What may be excused before, will now be vilified just because it came from a Senior Advocate of Nigeria. You must therefore secure your professional reputation jealousy, not just for your own good, but for the sake of the Rank itself for indeed, you have become ambassadors of this institution, upholding it for those that have passed to glory, as well as those who aspire to it. The respective duties to the client, the Bar and the Bench are well spelt out in the Rules of Professional Conduct⁵ which you are generously acquainted with.

This is not the forum to extensively dwell on same, but suffice it to observe that with respect to your new status, those rules which have been overlooked are now at the front burner, with your every step scrutinized to ensure compliance.

The Client

Depending on where you practise, do not be surprised that you may experience some decline in your clientele. There are some Courts which you are no longer permitted to appear in on routine. The clients who had relished your appearance in those courts may not depend on your juniors for representation in certain courts which you may not personally appear. Depending on the age of your colleagues in chambers, you stand the chance of losing such clients. There will be clients who may unilaterally feel that they could not afford your services, owing to your new exalted position. The panacea? Do not be in a hurry to adjust your fee, but do so gradually, especially with the older clients.

These are some potential clients who, seeing the appellation SAN, may unilaterally decide that they may not afford you. Those who seek you out based on the appellation will expect a very high standard of performance from you, much higher than you had hitherto operated. Yet, your basic duty, first as a lawyer, reverberates. You must consult with the client in all questions of doubt which do not fall within his discretion and keep him strictly informed, not just

⁵ Rules of Professional Conduct for Legal Practitioners 2007

of the implications of all processes filed, but of all essential developments, and warn him of risks which may likely occur in the process of the representation.

The obligation to refrain from conduct which may be unlawful even though there may arguably be valid avenue, becomes more paramount. You must keep strictly within the law notwithstanding any contrary instruction by the client and if the client insists to the contrary, then you shall be happy to withdraw your representation. The further duty to advice your client to refrain from committing misconduct or breach of the law, must be observed with renewed vigour. This includes abstaining from complicity in the creation or preservation of evidence when you know or reasonably ought to know that the evidence is false, illegal or fraudulent.

The Oath that you will take on the ceremony of your conferment essentially adorns you with the responsibility of an officer of the Federal Republic of Nigeria. That Oath runs thus:

“I upon whom the rank of Senior Advocate of Nigeria has been duly conferred declare that I will at all times faithfully serve the interest of the Federal Republic of Nigeria in the capacity of Senior Advocate of Nigeria and to that end will support and uphold the Constitution of the Federal Republic of Nigeria 1999; that I will to the best of my ability assist the courts of justice duly established in the Federal Republic of Nigeria in the performance of their judicial functions; and that I will at all times uphold the dignity of the rank of Senior Advocate of Nigeria.”

The affirmation or the Oath whichever is preferred, binds you as an astute and mature person to very sterling and gave responsibilities which if simply recited, may not duly convey its seriousness. May I take the liberty to segment them.

These obligations are:

- i. To be faithful to the interest of the Federal Republic of Nigeria.
- ii. To serve the interest of the Federal Republic of Nigeria.
- iii. To support the Constitution of the Federal Republic of Nigeria.
- iv. To uphold the Constitution of the Federal Republic of Nigeria.

- v. To assist the Court of Justice in the performance of judicial functions.
- vi. To at all times uphold the dignity of the Rank of Senior Advocate of Nigeria.

The anchor in the word “faithful”, implies reliability, dedication, perseverance, honesty and integrity. It is essentially about display of the essence of astuteness and fidelity. It equally entails upholding the principles of the Constitution on the foundation of which rests all laws prevalent in the Federal Republic of Nigeria. In all, you will bind yourself to be consistent and trustworthy in your calling, to uphold the integrity of the law and applicable rules.

The interest of the Federal Republic of Nigeria is embedded in observance of the rule of law and in operating at all times within the precincts of the law and the prevailing rules. It is on these sacred stanchion that the Constitution and all other laws will be mounted and upheld.

Lamenting on a departure from the acceptable norms for a lawyer, the Supreme Court in the case of **Maba v. State**⁶ held thus:

“The counsel responsible for this appeal is hereby reminded of the combination of Rules 30 and 32 (2)(j) & (k) of the Rules of Professional Conduct for Legal Practitioners, 2007-the RPC frowns at this conduct. Rules 30 and 32 (2)(j) & (k) of the RPC are as follows- 30. A lawyer is an officer of Court and accordingly, he shall not do any act or conduct himself in a manner that may obstruct, delay or adversely affect the administration of justice. 2. In presenting a matter to the Court, a lawyer shall (not) (j) promote a case which to his knowledge is false. (k) in any other way do or perform any act which obviously amounts to an abuse of the process of the Court or which is dishonourable and unworthy of an officer of the law charged, as a lawyer, with the duty of aiding in the administration of justice. I notice, these days: either for quick financial gains or for the purpose of making the numbers of Supreme Court appearances required to support application for the conferment of the privilege of the rank of Senior Advocate of Nigeria, lawyers are becoming rather reckless in the manner they

⁶ (2020) LPELR – 52017 (SC), per Eko, JSC (pp.33-34.para C)

approached and inundate this Court with all manners of appeals. As a word is enough...I say no more." (Emphasis supplied)

On the need for counsel to be mindful of the integrity of the law in the conduct as an advocate, the Court in **Ajuwon & Ors v. Governor of Oyo State & Ors**⁷ held thus:

"The defence counsel (particularly at the lower Court and here), however, persisted in spite of the admissions in their counter-affidavit above referred. By so doing they, as officers of the Court, enjoined by Rule 30 of the Rules of Professional Conduct for Legal Practitioners, 2007, "not to do any act or conduct himself in any manner that may - delay or adversely affect the administration of justice, had buckled under. A counsel, when he appears in Court in a matter in his professional capacity, shall not deal with the Court otherwise than candidly or fairly. In presenting a matter to the Court in that capacity, he "shall disclose any legal authority in the jurisdiction known to him to be directly adverse to the position of his client". In that capacity, also, counsel before the Court in a matter, shall not "promote a case which to his knowledge is false". See Rule 32(1),(2)(a) & 3(j) of the same 2007 Rules of Professional Conduct." (Emphasis supplied)

The Court

You will swear to assist the Courts of Justice duly established in the Federal Republic of Nigeria in the performance of their judicial functions. Without the judiciary, the nation has no hope for the institutionalization of the rule of law. It is our collective responsibility to ensure that the integrity of the Judiciary is upheld. I am no doubt in no position to assess the persons whom I address as my lords and having lived with one who was sworn in as a Judge of the High Court of the Federal Capital of Lagos in 1964, I cringe at the criticism of Judges. I will, however, be justified to refer to the state of the judiciary as elucidated by two (2) among our best Judges, with a caveat that I do not necessarily adopt their views as mine. Indeed, perception is a sensation interpreted in the lights of experience. His Lordship Adefope-Okojie JCA, in his

⁷ (2021) 55339 (SC), *per Eko*, JSC(Pp.33-34,paras.F-E)

valedictory speech, with respect to the state of the judiciary in Nigeria, exasperatingly opined thus:

“Pleas are expressed everyday by the generality of the public begging the judiciary just to be truthful; and to save the country from collapse. My question is whether the judiciary needs to be begged or cajoled? What is it that qualifies any person to bear that exalted name Honourable Justice? Is it not for him to administer justice without fear or favour?...Unfortunately, it has been severally vilified, with the Apex Court so denigrated and called by a social commentator as a voter gaggle of useless, purchasable judicial bandits. How did the judiciary get to this level? Why is the whole country on edge for fear of what the public regards as unpredictable judicial pronouncements? There must be a rethink and hard reset. If the people we have sworn to defend have lost confidence, there is a problem that must be addressed.”
(Emphasis supplied)

It is even more provocative, or perhaps thought provoking should be a better expression, that a Justice of the Supreme Court as incorruptible and distinguished as Hon. Justice Musa Dattijo Muhammad JSC, would exasperatingly in his own valedictory speech express thus:

“The judiciary must be uniquely above board. Appointments should not be polluted by political, selfish, and sectional interests. The place of merit, it must be urged, cannot be over-emphasized. Public perceptions of the judiciary have over the years become witheringly scornful and monstrously critical. It has been in the public space that court officials and judges are easily bribed by litigants to obviate delays and or obtain favourable judgments.”

Without delving into the veracity of the foregoing, being what may at best be described as first-hand account by those who should know, I must without equivocation note that litigants have very high expectations whenever they approach the court. Some will not hesitate to perceive bias or other forms of impropriety, sometimes quite unjustifiably, when a decision is not in their favour. It follows that every conscious and reasonable effort must be made to ensure that objective grounds for such perceptions are either minimized or totally obliterated.

Reacting to the foregoing expressions and others with respect to the public perception of the judiciary, while addressing the 2023/2024 Legal Year in

Anambra State on behalf of the Body of Senior Advocates of Nigeria (BOSAN),
I had this to say:

There is a high responsibility on the part of lawyers in the justice delivery system. It is alright to lose a case. Sometimes a lawyer is celebrated in defeat more than those whose clients emerged victorious from patently inexplicable judgments. Lawyers who have turned to television advocates, most of whom have not adorned their Barrister's regalia since their call to the Nigeria Bar, and some of whom were procured to support a determined resolve, invariably offer skewed opinions on judgments, barely seconds after their delivery, with no benefit of reading or critically analyzing the judgments. Worse still, they collaborate and generate media reports, which are simplistic and inaccurate, leaving the public grossly disadvantaged by its restriction of access to undiluted information.

The recent "All Eyes on the Judiciary" slogan was interestingly propelled by lawyers, some of whom when called upon to pay rapt attention to the judgment being delivered, went into deep slumber or perhaps irretrievable meditation. If we as lawyers unduly harass the foundation of the justice delivery system, the house will surely collapse on us. As was stated by St. Augustine"

"Remove justice and all you have are great robberies."

As Senior Advocates of Nigeria, we bear the primary responsibility of ensuring that the judiciary is not subjected to undue and vitriolic pillory. If negative comments emanate from a young counsel, the effect may not be so profound, but if uttered by senior counsel, the reverberation will proceed beyond expectation.

Indeed, as Calpurinia Julius Caesar's wife stated:

"When beggars die, there are no comets seen; the heavens themselves blaze forth the death of princes."⁸

These also extend to utilization of provocative words not just in public but in the Briefs filed in Court. The use of strong and sometimes flowery language borne out of mere exuberance, such as accusing the *judex* of judicial rascality, crucifixion of justice, turning the law on its head cannot be within the tools of a Senior Advocate of Nigeria. On the abhorrence of such practice especially

⁸ Julius Caesar by William Shakespeare (Act 2, Scene 2)

without justification, the Court in **Omatex Computer Ltd v. F.B.N Ltd**⁹ held thus:

Before concluding on this issue, I must address the uncharitable remark made by learned Counsel for the Appellant against the learned trial Judge wherein the learned trial Judge was accused of engaging in judicial rascality in deliberately requiring to be bound by the decision of the Supreme Court and this Court in RE:FAMFART BODUCE & SHIPPING LINE LTD VS E.D.E. COMM. (SUPRA) and SPECTRA LTD VS STABILINI VISION LTD (SUPRA). Did the learned trial Judge refuse to be bound by the two decisions as argued by learned Counsel for the Appellant? I have gone through the Ruling of the trial Court and I cannot see where the learned trial Judge refused to be bound by the two decisions as argued by the Appellant. The trial Court did not consider the two cases and that is quite different from failure to be bound...

Worse still, it would be very wrong for any Counsel worth his calling to accuse a judge in his brief of argument of judicial rascality. Briefs of argument cannot and should not be used as an instrument of insulting judges. No Counsel has the right nor power to accuse a judge of judicial rascality either in his brief or elsewhere. An abuse on a judge is a direct attack on the whole judicial system. Counsel might have taken a cue from the decision of the apex Court wherein such phrase was used. That is the preserve of the apex Court to any judge below that Court. That garb is too big for a legal practitioner to adorn. Counsel... who settled the Appellant's brief appears to be nothing but a coward who exhibited his impertinence in a most crude form on a person who has no right of reply. His conduct is uncouth and barbaric, akin only to gangsters and the legal profession is not one for gangsters or rascals but a profession of honourable people. A good professional does not outrightly cast aspersions on the integrity of a judge all in a bid to win a case. It is not the Judge who is indicted but the judicial system. Lawyers should desist from attempt to wreck the Court and later come round to blame the occupants. See HUSSEINI & ANOR VS MOHAMMED & ORS (2014) LPELR 24216; NWAFOR VS ANYAEBULAM (1999) LPELR 2765 and ASSOCIATION OF SENIOR CIVIL SERVANTS OF NIGERIA VS GOVERNOR OF BAYELSA STATE & ORS (2019) LPELR 47261."

⁹ (2021) LPELR – 56812(CA), per Lamido, JCA (pp.26–29, paras.E–D)

Indeed, it is a sacred duty of a Senior Advocate of Nigeria not just to discourage lawyers in the utter bar from denigrating the integrity of the Court, but to be at the vanguard for the protection of the Judex. Both sides of the divide must champion the responsibility of ensuring the erection of an enviable justice system. The Supreme Court, per Tobi J.S.C in **Emekwe v. IMB Ltd**¹⁰ perhaps put the relationship between the Bar and the Bench thus:

“It is only when Judges and Counsel are in some form of “romance” that their joint partnership in the crusade of building the best justice system will be achieved in our legal system”.

The foregoing was totally jettisoned in **Amaraire v. State**¹¹, where the Court opined thus:

Before concluding this judgment, I deem it necessary to comment on the manner in which learned counsel for the appellant, castigated and lambasted the learned trial judge throughout his brief of argument. He submitted inter alia: "the learned trial judge was always in the habit of fine-tuning the prosecution's case for it"; "the learned trial judge became an investigator and not an adjudicator"; "it does not require much intelligence to be aware that in 2013, Nigeria Police had become 'Nigerians greatest tormentors....'; "his entire attitude suggests bias"; "the judge's demeanor and/or attitude throughout the trial leaves much to be desired." Significantly, there was no ground of appeal before the lower Court alleging a breach of the appellant's right to fair hearing on grounds of bias, which could even be the subject of an appeal before this Court. I agree with learned counsel for the respondent that the vicious attack on the competence and integrity of the learned trial judge is uncalled for. We belong to a learned profession where decorum and etiquette are the rules we live by. In the case of Enekwé vs IMM.B. Nig. Ltd. (2006) 19 NWLR (Pt. 1013) 146 @ 194 E-F, His Lordship Tobi, JSC stated inter alia: "Judges have no forum to defend themselves in the judicial process for positions they take in their judgments. They cannot speak one more word outside their judgments in defence of the positions they have taken. Let parties be slow in pouring venom on them. It is a serious attack on a judge to say that he introduced in the case new matters that were not before the Court. So much

¹⁰ (2006) 19 NWLR (Part 1013) 146 at 174,

¹¹ (2016) LPELR – 413 05 (SC), per Kekere-Ekun, JSC (Pp. 30-32, paras. D-B)

is involved as so much could be read into or out of the allegation. "The allegation that the learned trial judge was "fine-tuning" the case of one of the parties, that he became an investigator and the aspersions cast on his competence/intelligence are completely unwarranted and unbecoming of a legal practitioner worth his salt. Learned counsel for the appellant should be well-guided."

On Competence

On the point of your competence, in the exercise that saw your emergence, you undoubtedly proceeded through the rigours of Section 22 (1), (3) and (6) of the Guidelines¹² which stipulates thus:

23.-(1) A Candidate must-

- (a) demonstrate high professional and personal integrity;*
- (b) be honest and straightforward in all his professional/personal dealings,*
- (c) be of good character and reputation;*
- (d) be candid with clients and professional colleagues;*
- (e) demonstrate high level of understanding of cultural and social diversity characteristic of the Nigerian society; and*
- (f) show observance of the Code of Conduct and etiquette at the Bar.*

(2)...

(3) A Candidate must have sound knowledge of the Law and demonstrable excellence in skills as an advocate with clear ability to use such knowledge for the advancement of the administration of Justice.

(4)...

(5)....

(6) A Candidate for the rank of Senior Advocate should demonstrate tangible contribution to the development of the Law through case Law or publications in recognized journals or scholarly presentation at national or

¹² *ibid*

international conferences considered by the Legal Practitioners' Privileges Committee to be of particular significance.

In that process legal practitioners, who you were either led by or appeared against in significant contested cases, attested to your integrity. Judges of superior Courts equally attested to your professional competence. To all outward manifestations, therefore, you stand as a perfect edifice and a due representation of excellence at the Bar.

It is therefore your undiluted responsibility to show that light that is in you, in your display at the Bar primarily, and then outside it. These should be manifest in your submissions in order not to represent a negative example of decline in the efficiency at the inner Bar. Such was the effect of the observation made by the Supreme Court in **Alfa v. Attai**¹³, where the apex Court on the disposition of a Senior Advocate of Nigeria pointedly held thus:

One more observation on the arguments of the learned senior counsel for the appellant. As shown above, he claimed that there was no law or rule that made it mandatory for the parties to call oral evidence to prove the liability of the defendant where the proceedings were instituted by way of Originating Summons, citing Fabunmi V. Agbe (1985) 1 NWLR (pt 2) 229; Belo V. Eweka (1981) 1 SC 101. With profound respect, it is evident that the learned Senior Advocate of Nigeria for the appellant did not read any of the two decisions he cited with relish to persuade the Court to accept his position. Neither in the leading judgment of Obaseki, JSC (pages 5-46); nor in the contributions of Bello, JSC (as he then was), (pages 46-47); Uwais, JSC (as he then was), (page 47); Kazeem, JSC (pages 48-50); and Oputa, JSC [50-57], was the phrase "Originating Summons" discussed or even mentioned. With regard to Bello v Eweka (supra), which learned senior counsel equally cited neither in the leading judgment of Eso, JSC (pages 2-28); nor in the contributions of Bello, JSC (as he then was) (page 28); Obaseki, JSC (pages 28- 32); Aniagolu, JSC (page 32); and Nnamani, JSC (page 33) was the phrase "Originating Summons" mentioned or discussed. Permit me therefore, my Lords, to re-state the position I had taken in another context. In Gbedu V. Itie (2010) 10 NWLR (pt.1202)227, speaking for the Court of Appeal, Nweze, JCA (as he then was) observed, "with profound respect: "... to all

¹³ (2017) LPELR – 42579(SC), Per Nweze, JSC (Pp. 24-26, para E)

learned counsel who are required by the operational rules in our appellate Courts to undertake the new art of 'advocacy in writing...' [that]. it does not serve any useful purpose to suffuse a brief of argument with cases that would not assist the Court in the resolution of the main issues before it. This is so for it may not only be counterproductive, it may actually obfuscate the Court's perception of the issues. More importantly, that tendency merely underscores a penchant for grandstanding: an unwarranted relapse into pedantry! As much as possible, it should be discouraged! After all, the law is that: 'cases are decided on their facts and ratio decidendi is based on the facts of the case before the Court. A ratio cannot be determined outside the facts of the case. Onyia v State (2009) A FWLR (Pt. 450) 625, 640; (2006) 11 NWLR (Pt. 991) 267..."

Similar expression could be found in **Mogaji v. Nigerian Army**¹⁴ where the court held thus:

The Respondent's attempt was to mislead the Court by importing extraneous materials in evidence and that is a condemnable act. The Court must frown at it and caution Counsel to the Respondent. As a senior counsel, such attitude is reprehensible and unbecoming of a minister in the temple of justice who must not mislead but aid the Court in doing justice".

Leadership at the Bar

As part of the Guidelines, Section 22 (7) mandates that:

- (7)(a) *A candidate should demonstrate clear qualities of leadership and loyalty to the legal profession.*
- (b) *He must have paid consistently as and when due his practicing fees and membership dues to the local branch in the last 10 years preceding his application form.*
- (c) *He must be involved in the provision of at least 3 pro bono cases and present documentation of such cases along with his completed application form*

¹⁴ (2024) LPELR – 61859 (CA), *per Nimpar, JCA* (p 32, Paras B-C)

There must be a clear realization that conferment of the Rank is clearly a privilege and not a right. It therefore mandates that the Rank ought to be received with humility. Besides upholding the standard of advocacy at the Bar worthy of credit and emulation which shall include expertise, your conduct should be respectful of all lawyers whether of the inner or outer Bar. It is in these that true leadership at the Bar is exemplified.

You must be cautious in manners, easy of address and a great ornament of the Rank which you will adorn. It is exhilarating that one is still reminded of the leadership qualities of the great Chief F. R. A. Williams, SAN, Chief Kehinde Sofola SAN, P. O. Balonwu, Alhaji Abubbakar Ibrahim SAN, Chief G. C. M. Onyiuke SAN and a host of others. These sages whose memories are ever so green, made sure that the standard at the Bar which they received, did not diminish. As junior counsel in matters I had against them, I made it a point of duty and observed sleepless nights in preparation, spent due time before the mirror, and in Court dressed in new immaculate white shirts, launching new bibs, so that my appearance did not disappoint them. They would inspect lawyers as if they were exercising the function of a Chief Executive at a guard of honour. I recall a case I had against the great G. R. I. Egeonu SAN at the High Court of Delta State, Iselle-uku many years ago. I arrived the Court at 8:30am from Onitsha after driving for about one and a half hours, so proud of myself that I arrived early, only to observe Chief Egeonu, SAN at the inner Bar, buried in his file and legal authorities marshalled out for our engagement. He took one look at me and asked, "Onyechi, is it fair?" In my perplexity, I gazed at my attire, thinking that I must have omitted something. Then I heard him say, "look at your time, you ought to have been here at least one hour before the Court sitting." I wondered that if a man then at least thirty years older than I, drove all these miles and arrived the Court one hour before the sitting of the Judge, certainly I must effect a change. For the duration of the case, I made sure that I was always in Court long before him, sometimes as early as 7:30am.

Remarkably, we were on opposite sides of the last of the **Nnaife v. Okafor** case, which was heard at the High Court of Anambra State, Ihiala Division. I renewed my vow that on no account should he again be disappointed in my Court attendance. Both of us arrived before 7:30am. In due time, the Judge Hon. Justice Ifeanyi Nweze, who drove daily from Enugu and arrived before 8:00am, noticed that both Chief Egeonu and I were in Court before 8:00am. His

lordship appealed to us to consider commencing the hearing at 8am, to which both of us acceded. In commending both of us, his Lordship proudly reminded us that he was mentored by Chief F. R. A. Williams (SAN), who was his principal and who instilled in them the culture of attending to court in good time. In that manner, one of the most complex land matters in that zone, was concluded as we then proceeded day to day, until judgement was delivered.

I recall an experience with Kehinde Sofola SAN who was a strict observer and enforcer of immaculate dressing. At the back entrance of the Court, I stood still, re-calculated and went back to my car and hibernated, for obviously I was not so proud of the shape of the bib I wore.

Observing these men deliver their submissions were delightful. They were absolutely prepared for not just their cases, but attended Court with mountains of legal authorities in readiness to unleash them in reply of the submissions of their adversaries. It might be said that advocacy such as existed then, is no longer encouraged. However, the process of brief writing still affords great pedestal for effective display of legal skills. When brief writing was introduced in 1985, these worthy advocates duly transitioned with their remarkable skills for sterling advocacy. We still have the opportunity to be steadfast in the display of requisite advocacy and due preparedness in the conduct of trials and appeals in the Courts.

We still have very ardent Senior Advocates now at the Bar who are providing great mentorship. In order not to offend, permit me not to mention them and leave posterity to be the judge of their adroit skills and contributions to the growth and sustenance of the Bar. There are so many attributes which you have acquired in your respective journeys over the years. They must not be left dormant; but on the contrary, ought to be passed on to those who look unto you with admiration and expect guidance from you. Your every step is being watched. I am certain that the persons who you respectively are today, represents a mixed grill of some sterling qualities you found worthy in the display of the great advocates you came in contract with. You are now that great advocate, whether you accept it or not, for the baton has now been handed over to you. It is a relay race and you are to finish your allotted task and must not drop the baton.

Let prudence direct you at all times, while fortitude should support you. Justice ought to be the fulcrum of your every action. You are likewise expected to

provide sound and positive mentorship for our junior colleagues. As you are now counted among the leaders of the Bar, it is your abiding duty to nurture the young lawyers that may at any time find themselves within the compass of your attainment. You shall encourage their growth professionally as well as trim and prune their conducts and actions, where they malfunction. You must by example, teach them to avoid sharp practices, improper practices and misconduct, quite conscious of the facts that we owe our profession a duty of not only avoiding impropriety, but indeed the appearance of it. Teach them, by example, to avoid undue media interactions as cases are done in Courtrooms and not before a TV audience and newspapers.

It is manifest that the Rank will attract enormous attention and publicity by the acceleration of the importance of the cases which you may be engaged in. You must therefore be temperate if you cannot totally avoid such publicity. Where an impression is created through you to the effect that incessant and undue media presence is acceptable, those who understudy you are bound to escalate such adverse practices to levels so deplorable that even you would be ashamed.

You had presented *pro bono* cases which you were engaged in. May such cases increase, rather than diminish from your stable. Consider this a way of showing appreciation for your preferment among a host of other very competent colleagues, who have not and may never attain your height. This ought to be escalated into public interest litigation, for as you will swear in due time, you will be a protector of the Constitution of the Federal Republic of Nigeria. Your visibility at Bar activities will invariably encourage younger lawyers. You now stand as a model and as a point of positive reference. If I may reiterate, your height will illuminate the paths of others by your mere presence and availability.

Discipline

My involvement in the Editorial Board of the Body of Benchers Reports of Directions of the Legal Practitioners Disciplinary Committee with Obasuyi Charles Uwensuyi Edosomwan, SAN as the Chief Editor, has exposed me to enormous complaints laid against legal practitioners. I am also aware of a considerable number of petitions before the Legal Practitioners Privileges Committee. A majority of them involve financial dealings with client's funds. You have no doubt presented satisfactory records of client's account. Please be steadfast in that course as well as diligent in other matters of the attorney

/client relationship. We are no doubt aware of the sanctions available in section 25 of the Guidelines¹⁵. That provision is as follows:

25. (1) The Legal Practitioners' Privileges Committee in the exercise of its disciplinary jurisdiction shall have the power to impose any or more or collectively the following sanctions on any legal practitioner holding the rank, namely:

(a) withdrawal of the rank of Senior Advocate of Nigeria;

(b) suspension of the rank for a period of time not less than six months

(c) issuance of letter of reprimand;

(d) payment of costs; and

(e) restitution

(2) The Legal Practitioners' Privileges Committee shall have the power to take further appropriate steps or sanctions in carrying out any disciplinary action against any Senior Advocate of Nigeria.

Your attainment of this zenith bears eloquent testimony of the fact that you have not been found wanting in any disciplinary matter. Our prayer is that the lofty state of affairs should pervade.

Conclusion

By all outward manifestation and I dare say, legal implication, you stand at the pinnacle of our profession, having been adjudged to have attained **DISTINCTION** in the profession. The word distinction took its root from the Latin *distinctio* meaning “a separating or a difference”, otherwise, to set apart. In the middle English of the 14th Century, it meant “difference” and “special honour”. by the Renaissance, it meant “excellence” and association with “honour”.

From whichever dispensation it is viewed, you are set apart as eminent and a specimen of professional competence, excellence, integrity and intellectual leadership at the Bar. You are thus deserving of the prestige and prerogatives appertaining to the Rank you have undeniably deserved. On behalf of the

¹⁵ *ibid*

BOSAN, I wish you the best in your journey on the path of excellence and virtue.

ONYECHI IKPEAZU OON, SAN, JD, Ph D, FCI Arb